

May 13, 2024

Reference: **2217 SW EMBERS TERRACE**
LEE COUNTY, FLORIDA
DEVELOPMENT SUITABILITY ASSESSMENT

Pursuant to your request, Smartors has conducted a preliminary review of the subject parcel for biological and ecological features which may affect the future development of the subject property. The following findings and discussion are based on an on-site inspection, review of available online databases, and our previous experience with permitting agencies. The preliminary site inspection was conducted by a qualified staff ecologist in May 2024.

LOCATION

The subject property (Lee County Folio ID: 10070733) is located within Section 16, Township 44S, and Range 23E in Cape Coral, Florida.

ZONING

The subject property (Lee County Folio ID: 10070733) is located in an area with Zoning Code R1 (for Single Family Residential)

STREET SUITABILITY

As seen in the figure below, the lot has direct access to a paved road.



VEGETATIVE COMMUNITIES

Field observations, in conjunction with the Lee County Soil Survey and aerial photographs, were used to develop a description of the vegetative community onsite. The vegetative community was identified and classified utilizing the Florida Land Use Cover and Forms Classification System (FLUCCS). A description of the community is provided below.

FLUCCS 190 – Open Land

This upland habitat contains a scattered canopy of Australian pine (*Casuarina equestifolia*), and cabbage palm (*Sabal palmetto*). Midstory and groundcover species present include: Bahia grass (*Paspalum notatum*), Mexican clover (*Richardia brasiliensis*), false buttonweed (*Spermacoce sp.*), beggar's tick (*Bidens alba*), smutgrass (*Sporobolus indicus*), hairy indigo (*Indigofera hirsuta*), southern beeblossom (*Oenothera simulans*), fanpetals (*Sida sp.*), spotted spurge (*Chamaesyce maculata*), and finger grass (*Digitaria sp.*).

WETLANDS, SURFACE WATERS, and OTHER SURFACE WATERS

The potential for on-site wetland, surface water, and other surface water habitats was evaluated consistent with current state and federal delineation and classification criteria. The site does not contain habitats which could potentially be determined to meet the criteria to be claimed as jurisdictional wetland by the Florida Department of Environmental Protection (FDEP).

LISTED WILDLIFE SPECIES

Search of available online resources revealed that the subject property is located within an 18.6-mile radius designated as Core Foraging Area of several wood stork (*Mycteria americana*) nesting colonies. Each of the documented colonies appear to be greater than 11 miles from the subject property. Under current regulations, the proximity of the off-site nesting colonies is not likely to affect the future development of the subject property.

Search of available online resources revealed that the subject property is located within the Consultation Area of the Florida scrub jay (*Aphelocoma coerulescens*). However, the site lacks any habitats which would be classified as Type I, II or III scrub jay habitat and no evidence of utilization by the species was observed during the site inspection. Thus, the Florida scrub jay is not likely to affect future development of the parcel.

Search of the Audubon Society Bald Eagle Nest Locator website revealed no nests within a half-mile radius of the subject property. No eagles or nests were observed on or around the subject property. Bald eagles should therefore not likely affect the future development of the subject property. The subject parcel is located within the FWS Consultation Area of the Florida bonneted bat (*Eumops floridanus*). No evidence of utilization by the Florida bonneted bat was observed onsite during the site inspection. The Florida bonneted bat is not anticipated to be utilizing the subject property, and therefore, is not likely to affect the future development of the property.

Search of available online resources did not reveal documentation of any other listed wildlife species currently utilizing the subject property.

The subject site contains upland habitats which could potentially be utilized by the gopher tortoise (*Gopherus polyphemus*). No gopher tortoise burrows, or evidence of the species were observed on the parcel. If gopher tortoise burrows are found on the parcel, a 100% gopher tortoise survey and relocation permit from the Florida Fish and Wildlife Conservation Commission will be required prior to development of the site if gopher tortoise burrows cannot be avoided during construction.

2680 NW 97th Ave Doral, FL 33172

(786) 754-6089

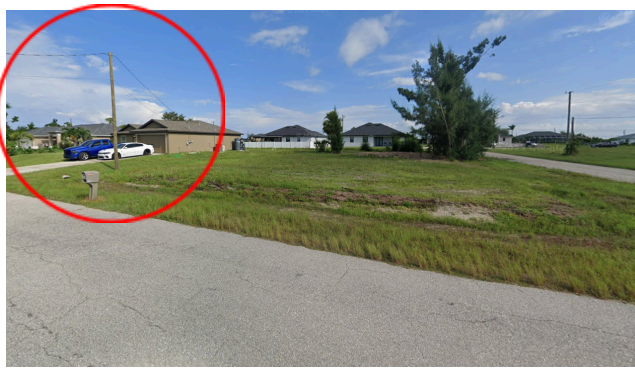
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The subject parcel contains habitats which are suitable for utilization by the Florida burrowing owl (*Athene cunicularia*) and is located in areas with extensive utilization by the species. No Florida burrowing owl burrows were observed on the parcel. If burrowing owl burrows are found on the parcel and cannot be avoided by a minimum of 33' during construction, a migratory bird nest removal permit from the Florida Fish and Wildlife Conservation Commission will be required prior to development of the site.

No protected species or evidence of protected species utilization which would require permits from the FWC or FWS were observed onsite during the site inspection.

UTILITIES

For water and sewer, a well and septic tank will have to be developed. There is access to electric lines close to the lot. The property will have to be connected to them which might constitute an extra cost.



Water: SN4W
Water Description: NORTH 4
Sewer: SN4S
Sewer Description: NORTH 4
Sewer Impact District: 2
Irrigation: SN4I
Irrigation Description: NORTH 4

LOT PHOTOS



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CONCLUSIONS

Elemento	SI/NO	Notas
Animals	Not Found ▾	
Wetland	Not Found ▾	
Zoning	Residential ▾	
Water	Well ▾	
Sewer	Septic Tank ▾	
Electricity	Present ▾	
Pavement	Present ▾	
Conclusion	We recommend to proceed ▾	

(From this moment on, any eventuality that occurs with any movement of wildlife or regulatory changes by the city/county, that affects the construction and its budget, Smartors will not be responsible, since it is out of their control)

The parcel is located within the consultation area of several federally listed species. No evidence of utilization by any species requiring permits by either the FWC or FWS was observed during the site inspection.

Our assessment found no wetlands or protected habitats on the subject parcel. Therefore, wetland permitting will not be required prior to development of the parcel.

Sincerely,
Smartors